HR COMPLIANCE

Self-Audit Checklist

A quick-start review of seven high-risk areas for small and midsize employers

From the book by Brandon Miller · brandonmiller.co

How to use this checklist. Set aside about an hour with your handbook, a few personnel files, and a recent payroll report. Mark each item **Yes**, **Partly**, or **No** based on what happens in practice, not just what is written down. If you are not sure, mark **No**: an answer you cannot verify is not a safe answer.

1 Hiring and Onboarding	Yes	Partly	No
Job postings and interview questions are checked for discrimination risk and for pay transparency and fair chance rules where they apply.	☐	☐	☐
Every Form I-9 is complete, signed on time, and stored appropriately.	☐	☐	☐

2 Employee Classification	Yes	Partly	No
Exempt and nonexempt classifications are based on actual duties and the federal and state rules that apply, not on job title or salary alone.	☐	☐	☐
Independent contractors were vetted against the legal tests that apply in your state.	☐	☐	☐

3 Wage and Hour	Yes	Partly	No
All time worked is paid, including pre-shift and post-shift tasks, travel, and training.	☐	☐	☐
Meal and rest breaks are tracked and follow the rules where your employees work.	☐	☐	☐
Overtime, shift differentials, and bonuses are calculated correctly in the regular rate of pay.	☐	☐	☐

4 Recordkeeping and Personnel Files	Yes	Partly	No
Personnel files are complete, including signed policies and performance records.	☐	☐	☐
Medical and confidential records are kept separately with limited access, and records are retained for the required period, then destroyed on a schedule.	☐	☐	☐

5 Harassment and Discrimination Prevention	Yes	Partly	No
Employees and managers complete required training, and you can show who was trained, on what, and when.	☐	☐	☐
Complaints are investigated, documented, and resolved promptly, with consistent corrective action.	☐	☐	☐

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6 Leaves and Accommodations	Yes	Partly	No
Leave requests are tracked and documented under federal, state, and local law and your own policy.	☐	☐	☐
Accommodation conversations (the interactive process) are documented consistently.	☐	☐	☐

7 Policies and Handbook	Yes	Partly	No
Your handbook is current with federal, state, and local law, and employees acknowledge updates.	☐	☐	☐
Policies match what actually happens, with no “fantasy policies” sitting on paper.	☐	☐	☐

What to do with your answers

Every **No** and **Partly** is a finding. Sort each one by urgency so the most serious items do not get buried under the rest.

Tier 1: Fix now	Tier 2: Plan it	Tier 3: Improve over time
Active legal problems, such as employees being underpaid or required paperwork missing for current workers. Correct these promptly, and consider involving counsel.	Gaps that carry risk but are not causing immediate harm, like outdated handbook language or inconsistent documentation. Assign an owner and a due date.	Upgrades that strengthen your program but may not be legally required, like moving from a spreadsheet to an HRIS or adding a second way to report concerns.

Make it a habit

You do not have to audit everything at once. Start with your highest-risk areas, then rotate. One realistic approach for a small employer is one focused review per quarter:

Q1	Q2	Q3	Q4
I-9s and personnel files	Timecards and overtime calculations	Leave and accommodation records	Handbook review and acknowledgments

Employees in more than one state? State and local rules can be stricter than federal law. Keep a one-page jurisdiction matrix listing each state where you have employees and where its rules exceed the federal minimum, so whoever handles payroll, leave, or discipline is not guessing which rules apply.

Go deeper with the book

HR Compliance: A Practical Guide to Managing the Challenges in a Complex Legal Environment walks you through the full audit process in Chapter 5: scoping, sampling, risk rating, and building a corrective action plan, with plain-language guidance for every area on this checklist.

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This checklist is general information to support your own review. It is not legal advice, and requirements vary by location and change often.